

GRANT, in part, the motion to strike Plaintiff's claim for prejudgment interest to the extent that it relies on non-contractual damages that cannot be resolved except by verdict or judgment. DENY, in part, the motion to strike Plaintiff's claim for prejudgment interest as it relates to liquidated damages (Civ. Code § 3287(a)) and unliquidated contract claims (Civ. Code § 3287(b)).

DENY the motion to strike the term "unnecessary tariffs", the amount of damages claimed (\$209,891.58) and allegations of "gross recklessness and wanton disregard" from the SAC.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2507426	GARCIA VS FCA US LLC	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

This matter has been continued from May 4, 2026, for Plaintiff to file a sur-reply that addressed the Economic Loss Rule under the fraud claim in the First Amended Complaint (FAC). Plaintiff has not filed a sur-reply as of 6/24/26.

SUSTAIN the demurrer to the 5th cause of action for negligent repair with 30 days leave to amend. The FAC avers that the Dealership "breached its duty" by "failing to properly store, prepare and repair the vehicle in accordance with industry standards." (FAC, Para.112.) The FAC also alleges that the breach was the proximate cause of Plaintiffs' damages (FAC, Para.113.), but Plaintiffs fail to plead the nature and extent of their damages. The claim fails to sufficiently plead damages.

OVERRULE the demurrer to the sixth cause of action for Fraudulent Inducement/Concealment.

Under *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 and *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the Plaintiff's fraud claim is not barred by the Economic Loss Rule. Plaintiff has sufficiently alleged that the parties entered into a contractual arrangement, showing the existence of a transactional relationship between the parties, and imposing a duty of disclosure upon FCA.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2507426	GARCIA VS FCA US LLC	MOTION TO STRIKE

Tentative Ruling:

DENY

Plaintiff has sufficiently pled a claim for fraudulent concealment, and hence he is entitled to request punitive damages.